

UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.

Before the Honorable Charles E. Bullock
Administrative Law Judge

	)	
In the Matter of	)	Investigation No. 337-TA-563
	)	
CERTAIN PORTABLE POWER	)	
STATIONS AND PACKAGING	)	
THEREFOR	)	
	)	

**COMPLAINANT ROADMASTER’S MEMORANDUM OF LAW IN SUPPORT OF
ITS MOTION FOR AN ORDER TO SHOW CAUSE AND DEFAULT JUDGMENT**

On March 9, 2006, the United States International Trade Commission (the “Commission”) opened this investigation under Section 337 of the Tariff Act of 1930, based on a complaint filed by Roadmaster (USA) Inc. (“Roadmaster”). Roadmaster’s complaint alleged that certain portable power stations being imported into the United States by respondent Sinochem Ningbo, LTD (“Sinochem”) violated Roadmaster’s valid patent, copyright, and trademark rights. The Complaint and Notice of Investigation were served on defendant Sinochem and the Embassy of the People’s Republic of China on March 10, 2006, by certified mail. Although the certified mail receipt has not yet been filed as received by the Secretary, the service copies have not been returned to the Secretary as undeliverable. This fact has been deemed a sufficient indicator of receipt to justify the issuance of a show-cause order. See, e.g., Certain Sildenafil or Any Pharmaceutically Acceptable Salt Thereof, Inv. No. 337-TA-489, Order No. 12 (May 13, 2003); Certain 4-Androstenediol, Inv. No. 337-TA-440, Order No. 8 (April 30, 2001). In addition, the Notice of Investigation was published in the Federal Register on March 14, 2006. Commission Rule 210.13(a) provides that a respondent shall have twenty

days from the date of service of the Complaint and Notice of Investigation to file a response with the Secretary. Rule 201.16(d) provides that ten additional days shall be permitted for service on a party in a foreign country.

Respondent Sinochem is a Chinese company, and the Secretary mailed the Complaint and Notice of Investigation to their address in China on March 14, 2006. Sinochem's response was thus due on April 13, 2006. To date, Sinochem has filed no response. In addition, Order No. 2 in this matter required each party to submit a discovery statement by April 17, 2006. As the Administrative Law Judge noted in Order No. 3, dated May 3, 2006, no statement was received from Sinochem.

As Sinochem has failed to respond to the Complaint and Notice of Investigation within the time prescribed by Commission rules, an order to show cause why it should not be held in default is appropriate pursuant to Commission Rule 216(b). Roadmaster therefore respectfully requests that the Administrative Law Judge enter an Order to Show Cause in the form attached hereto. Furthermore, should Sinochem fail to appear and show cause, Roadmaster requests immediate entry of a default against Sinochem. Should the Administrative Law Judge enter a default, Roadmaster will take the necessary steps pursuant to Commission Rule 210.16(c) to seek immediate relief against Sinochem.

Respectfully submitted,

/s/Charles M. Hart

James Greenberg, Esquire
Robert F. Zielinski, Esquire
Charles M. Hart, Esquire
Christopher L. Soriano, Esquire

Dated: May 9, 2006

Counsel for Roadmaster (USA) Inc.

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_____	)	

[PROPOSED] Order No. ____: Granting Complainant's Motion for an Order to Show Cause Regarding Entry of Default against Respondent Sinochem Ningbo LTD

(May ____, 2006)

In consideration of the Motion of Roadmaster (USA) Inc. for an Order to Show Cause and Default Judgment against Respondent Sinochem Ningbo LTD and the Memorandum in Support thereof, it is hereby

ORDERED that Sinochem Ningbo LTD, no later than the close of business on May ____, 2006, show cause why it should not be found in default pursuant to Commission Rule 210.13 and why immediate entry of relief should not take place if Sinochem Ningbo LTD is found in default.

Charles E. Bullock
Administrative Law Judge

CERTIFICATE OF SERVICE

I, Charles M. Hart, hereby certify that the attached Motion for Order to Show Cause and Default Judgment was served upon the following by First Class Mail, postage prepaid, on May 9, 2006:

David O. Lloyd, Esquire
Commission Investigative Attorney
United States International Trade Commission
500 E Street SW
Washington DC 20436

Sinochem Ningbo
21 Jian Xia Street
Ningbo 315000 China

/s/Charles M. Hart
Charles M. Hart